

TRAINED SERVICE ANIMALS

Loudoun County Public Schools ("LCPS") does not discriminate on the basis of disability. Individuals with disabilities have the same right as individuals without disabilities to the use and enjoyment of our schools and facilities. LCPS strives to make reasonable accommodations for an individual with a disability's use of a service animal on school owned property. LCPS has established the following procedures for evaluating whether and how a request to bring a service animal on school property can be implemented under the circumstances on a case-by-case basis.

A. Definitions

1. "Trained service dog" means a dog that has been individually trained to do work or perform tasks for the benefit of an individual with a disability including a physical, sensory, psychiatric, intellectual, or other mental disability. This term includes hearing dogs; guide dogs; assistance dogs; seizure alert dogs; mobility dogs; psychiatric service dogs; autism service dogs; and other service dogs. "Trained service dogs" do not include the following: skilled companion animals; therapy dogs; social dogs; facility dogs; agility dogs; police dogs; search and rescue dogs; helping dogs; support dogs; family or companion dogs or pets. "Trained service dogs" may include categories of service dogs recognized in future amendments to Virginia Code [§51.5-44](#) or as determined by courts of applicable jurisdiction. A trained service dog is not a pet. The work or task performed must be directly related to the individual's disability.

2. "Hearing dog" means a dog trained to alert its owner by touch to sounds of danger and sounds to which the owner should respond.

3. "Trained service miniature horse" means a miniature horse that has been individually trained to do work or perform tasks for the benefit of an individual with a disability. A miniature horse is generally 24-34 inches in height (measured to the withers or shoulders) and generally weighs between 70-100 pounds. The School Division reserves the right to consider the following factors in determining whether a trained service miniature horse can be approved for access to a school or school sponsored event:

- a. the type, size, and weight of the miniature horse and whether the facility can accommodate those features;
- b. whether the handler can demonstrate sufficient control of the miniature horse;
- c. whether the miniature horse is housebroken; and

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- d. whether the miniature horse's presence in a specific facility compromises legitimate safety requirements that are necessary for safe operation.

Trained service miniature horses are not pets, and the work or task performed must be directly related to the individual's disability. All additional requirements outlined in this policy and regulation, which apply to service animals, also apply to miniature horses.

4. "Health certificate" means certification by a veterinarian licensed to do business in Virginia that the trained service dog or service miniature horse is currently in good health, free of parasites, and has all required vaccinations up to date. Evidence of the same shall be provided with any request.

5. "Three-unit service dog" or "miniature horse team" means a team consisting of a trained service dog or miniature horse, an individual with a disability, and a person who is an adult and who has been trained to handle the service dog or miniature horse.

6. "Mobility-impaired person" means a person who has completed training to use a dog or miniature horse for service or support because he is unable to move about without the aid of crutches, a wheelchair or any other form of support or because of limited functional ability to ambulate, climb, descend, sit, rise or perform any related function.

7. "Individual with a disability" means a person with a disability or a person who requires accommodations under Section 504 of the Rehabilitation Act or the Americans with Disabilities Act to address a condition affecting a major life activity.

8. "Work or tasks" performed by a service animal must be directly related to the individual's disability. Examples include, but are not limited to, assisting individuals who are blind or have low vision with navigation and other tasks, alerting individuals who are deaf or hard of hearing to the presence of people or sounds, providing non-violent protection or rescue work, pulling a wheelchair, assisting an individual during a seizure, alerting individuals to the presence of allergens, retrieving items such as medicine or the telephone, providing physical support and assistance with balance and stability to individuals with mobility disabilities, and helping persons with psychiatric and neurological disabilities by preventing or interrupting impulsive or destructive behaviors.

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B. Access To LCPS Owned Property, School Buildings, School Administration Buildings, And School Sponsored Activities Or Events By Visitors With Trained Service Dogs Or Miniature Horses

1. Individuals with disabilities accompanied by trained service dogs or miniature horses who are visiting LCPS owned property, schools or School Administration buildings shall be granted access to school buildings, School Administration sites or school sponsored activities or events provided that such trained service dogs or miniature horses are identified by the individuals as trained service dogs or miniature horses in accordance with Virginia Code [§51.5-44E](#), as amended.

2. Trained service dogs or miniature horses that create disruptions that fundamentally alter the nature of the activity, event, program or service, create a direct threat to the health or a safety concern to the school or work environment may be required to leave.

3. Experienced trainers of service animals may be accompanied on school property by a dog or miniature horse that is in training to become a service animal. The service animal in training must be at least six months of age. Trainers must wear a jacket identifying the organization to which they belong. Persons conducting continuing training of a service animal may be accompanied by a service animal while on school property for the purpose of school business. Persons who are part of a three-unit service animal team may be accompanied by a service animal while on school property provided that person is conducting continuing training of a service animal. A three-unit service animal team consists of a trained service dog or miniature horse, an individual with a disability, and a person who is an adult and who has been trained to handle the service animal. The dog or miniature horse may accompany these persons while on school property for school purposes.

C. Requests For A Trained Service Dog Or Miniature Horse To Access LCPS Owned Property, School Sites Or School Sponsored Activities And Events By Students Or Employees

1. A student or employee with a disability seeking approval for a trained service dog or miniature horse to accompany the individual with a disability while in a school, School Administration building, school bus or at a school-sponsored activity or event will make such request to the building principal or building administrator. Such requests can be made on the individual with a disability's behalf by persons other than the individual with a disability. The building principal or building administrator may request additional information to

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support the request and will forward such request and supporting documentation for an administrative review. The requester will not be asked for proof the animal is certified, trained, or licensed as a service animal, but may be asked for a health certificate. If it is not apparent the animal is trained, inquiry may be made of the handler or family.

2. A service animal's handler is required to clothe his or her service animal in a backpack, harness, or vest identifying the animal as a service animal, with appropriate identifiers specified by Virginia law:

- a. for individuals with disabilities with visual impairment, including blindness: a harness.
- b. for individuals with disabilities with deafness or hearing impairment: a blaze orange leash.
- c. for individuals with disabilities with mobility impairment: harness, backpack, or vest identifying the dog as a trained dog.

3. Use of Harnesses and Vests for Training.

- a. A dog that is in training to become a guide dog or a currently trained guide dog that is undergoing continuing training must be in a harness.
- b. A dog that is in training to become a hearing dog or a currently trained hearing dog that is undergoing continuing training must be on a blaze orange leash.
- c. A dog that is in training to become a service dog or a currently trained service dog that is undergoing continuing training must be in a harness, backpack, or a vest identifying the dog as a trained service dog.
- d. The training cannot disrupt or interfere with an LCPS school's educational activity or business process. It is expected that training would not normally take place in the classroom during instructional time or business office during work hours.

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- e. All requirements of this policy which apply to service animals, such as annual written requests, and supervision, care, and damages, also apply to dogs in training.
- 4. School officials may not charge a fee or other surcharge for admitting the service animal on school property to attend events for which a fee is charged.
- 5. The student or employee with a disability requesting approval for a trained service dog or miniature horse to be present on LCPS owned property, in schools, school administration buildings, school buses or at school-sponsored activities or events will be responsible for all costs, certifications and equipment associated with the trained service dog or miniature horse. The student or employee with a disability must be the dog's or miniature horse's primary handler and must demonstrate the ability to care for, control, restrain and otherwise meet the needs of the trained service dog or miniature horse without assistance from other persons. A three-unit service dog or miniature horse team will be allowed access for the purpose of training the student or employee provided that such access is for a temporary period and the training does not interfere with the work or educational environment.
- 6. A service animal must be under the control of its handler at all times. The service animal must have a harness, backpack, vest identifying the dog as a trained service dog, leash, or other tether unless either the handler is unable because of a disability to use a harness, backpack, vest, leash, or other tether, or the use of a harness, backpack, vest, leash, or other tether would interfere with the service animal's safe, effective performance of work or tasks, in which case the service animal must be otherwise under the handler's control.
- 7. A trained service dog or miniature horse must have up-to-date health certification at all times.
- 8. Trained service dogs or miniature horses approved for access may be denied access if at any time the following conditions are not maintained:
 - a. The dog or miniature horse is not clean, well-groomed or has an offensive odor;
 - b. The dog or miniature horse urinates or defecates in inappropriate locations, or handler does not dispose of the waste;

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- c. The dog or miniature horse solicits attention, visits, or annoys any member of the student body or school personnel;
- d. The dog or miniature horse vocalizes unnecessarily, i.e., barking, growling, howling, or whining;
- e. The dog or miniature horse shows aggression toward people or other animals;
- f. The dog or miniature horse solicits or steals food or other items from the student body or school personnel; or
- g. The dog or miniature horse interferes with the educational program of any students or work environment of LCPS employees.

9. Trained service dogs or miniature horses must not in any other way interfere with the educational process of any student, disrupt the work environment of employees, or otherwise interfere with the school or work environment.

10. Trained service dogs or miniature horses must not pose a direct threat to the health or safety of any student, school personnel or other persons. In consideration of the safety and welfare of the disabled student or employee, the dog or miniature horse and other persons, trained service dogs or miniature horses must not be tethered or otherwise tied or secured by a locking device to the student or employee. If a student or employee is unable to manage the dog or miniature horse without a continuous, secured tether, an administrative review may conclude that the student or employee is unable to safely manage the dog or miniature horse in a school or work environment setting. This restriction does not apply to mobility dogs or miniature horses that may be required to be tethered to a wheelchair.

11. If the service animal's handler is not a student or employee, the service animal's handler must submit to and pass a background check by the school division at the handler's expense.

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D. Review Process

1. For each request, an administrative committee will review the request on a case-by-case basis. The committee will generally include the Director of Diagnostic & Prevention Services or designee, a teacher who is familiar with the student's needs, and administrators from the facility where the trained service dog or miniature horse is being requested.

2. The committee may request additional information regarding the trained service dog or miniature horse and the primary handler's ability to meet the needs of the dog or miniature horse. If necessary to meet the unique needs of the dog or miniature horse, the employee or the student, the building or other persons who may come in contact with the dog or miniature horse, the committee may develop additional conditions or procedures to be used with the dog or miniature horse. These conditions or procedures may change to address new circumstances. All parties will strive to provide reasonable accommodations regarding the dog or miniature horse.

- a. The committee may request information to substantiate that the trained service dog or miniature horse is actually providing a service to the student or employee with disability related conditions as opposed to being a companion animal.
- b. In the event access is granted, the committee will consider and establish a plan that may address the following issues:
 - (i) A rest place for the dog or miniature horse, if necessary;
 - (ii) Opportunities for the dog or miniature horse to go outside to relieve itself and the designated areas where the dog or miniature horse may relieve itself. How defecation or urination in inappropriate areas will be cleaned and disposed;
 - (iii) Rest times for the dog or miniature horse (gym, lunch, and recess);
 - (iv) Water or feeding breaks for the dog or miniature horse;

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- (v) Emergency evacuation plan participation; and
 - (vi) Fire drill or other disaster plan participation.
- c. Access plans developed by the committee will not be considered contracts between the School Board and the student or employee but rather a guide for the parties involved. ***Access plans for a student's service dog or miniature horse will not be considered an accommodation under Section 504 of the Rehabilitation Act or a service or accommodation under a student's Individual Education Plan (IEP).***
- d. The committee may consider the impact that the dog or miniature horse will have on other students or employees in the same building or event when developing the plan. Allergies to or fear of the dog or miniature horse alone will not constitute reasons to deny the dog or miniature horse access to the building. The parties affected will strive to accommodate the needs of all affected parties.
- e. In the situation where a request is made for access by a trained service dog or miniature horse to a building that is already allowing another trained service dog or miniature horse to access, the School or Building Administration reserves the right to make or change assignments to rooms or programs or work environments based on the needs of the building, the student body or the staff. Should a building administrator determine that the number of service dogs or miniature horses seeking access to the building creates an undue hardship on the educational or work environment that fundamentally alters the nature of the services performed, or poses a direct threat to the safety of others, the School or Building Administration reserves the right to deny a new request for access by another primary handler of a trained service dog or miniature horse. The School or Building Administration will refer such denials to the review committee to explore other options to address the request for access by the dog or miniature horse.

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- f. Students or employees seeking access for dogs or miniature horses in training to become service dogs or miniature horses will be allowed access for the dog or miniature horse if the dog or miniature horse is in training to be placed with the student or employee. Instruction or work time will not be used for training purposes. The School or Building Administration reserves the right to place this restriction on students and employees because students attend school for the purpose of obtaining educational services and employees attend work for the purpose of fulfilling employment duties and training dogs or miniature horses for placement with other persons may interfere with the student's educational experience or disrupt the student's educational or the employee's work environment. The building administrator may make limited exceptions to this restriction. Employees seeking access for dogs or miniature horses in training to become trained service dogs or miniature horses may be granted access under the conditions set forth by the building administrator. The building administrator may deny access if the presence of the dog or miniature horse interferes with the employee's or other employees' ability to perform job functions.

E. Appeal Of Denial Of Request Or Withdrawal Of Approval For Trained Service Dog Or Miniature Horse Access

1. In the event that a committee or building administrator has denied the request for a trained service dog's or miniature horse's access or approval for a trained service dog's or miniature horse's access has been withdrawn, the primary handler or a designee may appeal that decision. Pending the resolution of the appeal, the service dog or miniature horse will not be allowed on LCPS property or at LCPS-sponsored activities or events.

2. Appeals by students will be sent to the Assistant Superintendent for Student Services. Appeals by employees will be sent to the Chief Human Resources Officer. Visitors with trained service dogs or miniature horses may file complaints with the Chief Human Resources Officer. The Assistant Superintendent for Student Services and the Chief Human Resources Officer may designate other persons to handle an appeal on their respective behalf.

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3. All documentation of the denial of request or withdrawal of approval will be forwarded with the appeal. Additional evidence may be requested to substantiate the information provided. Upon request by the Assistant Superintendent of Student Services or Chief Human Resource Officer or designee and at the School Administration's expense, an expert may be consulted with regard to resolution of the issues in dispute. Such expert may be an employee or agent of the School Board or LCPS with no direct involvement with the trained service dog or miniature horse.

4. Within ten (10) working days of the date of receipt of the appeal, the Assistant Superintendent of Student Services, Chief Human Resource Officer or designee will render a written decision. The decision of the Assistant Superintendent of Student Services or the Chief Human Resource Officer or designee will be final.

F. Responsibility For The Dog Or Miniature Horse. The School Board does not assume responsibility for the care or conduct of a trained service dog or miniature horse that has been given access to LCPS owned property, a school, School Administration building, a school bus or a school-sponsored activity or event. The student, employee or visitor who is the owner or handler of the service animal shall be solely liable for any damages to facilities, equipment, or school property or injury to students, staff, or other persons caused by the dog or miniature horse.

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Leg Refs: Code of Virginia, 1950, as amended, § [51.5-44](#); The Virginians with Disabilities Act; The Americans with Disabilities Act of 1990, as amended; The Americans with Disabilities Act Amendments Act of 2008, as amended; 28 C.F.R. §35.104, §35.136, §36.014; Individuals with Disabilities Education Act and implementing regulations at 34 CFR Part 300.

Cross Refs: [Policy 3050](#), Trained Service Animals, [Policy 1040](#), Equal Opportunity For Equitable, Safe And Inclusive Environment, [Policy 8-6A](#), Non-Discrimination on the Basis of Disability for Students